



SPONSOR: Sen. Hoffner & Rep. Bush
Sen. Sokola; Reps. Gorman, Griffith, Morrison,
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DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 58

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO POSTCONVICTION REMEDY.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 45, Title 11 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating accordingly:

§ 4505. Postconviction remedy – change in scientific information.

(a) Definitions.

For purposes of this section, the following definitions apply:

(1) “Conviction” means a verdict of guilty by the trier of fact, whether judge or jury, or a plea of guilty or a plea of nolo contendere accepted by the court, or a verdict of not guilty by reason of insanity under § 401 et seq. of this Title. “Convicted person” means a person who has received such a conviction.

(2) “Forensic science” means the application of scientific or technical practices to the recognition, collection, analysis, and interpretation of evidence for criminal and civil law or regulatory issues.

(3) “Forensic scientific evidence” means scientific or technical information, a forensic expert’s scientific or technical opinion, report, or testimony, laboratory procedures and policies, and any other relevant scientific knowledge or scientific or technical material.

(4) “Scientific knowledge” is broadly defined to mean evidence-based information produced by the general scientific community or relevant scientific fields.

(b) Applicability and basis for relief.

(1) This section applies to relevant forensic scientific evidence that satisfies any of the following:

a. The evidence was not available to be offered by a person prior to that person’s conviction.

b. The evidence undermines forensic scientific evidence presented at trial.

(2) A court may grant a convicted person relief if all of the following are satisfied:

a. The convicted person files an application asserting that relevant forensic scientific evidence is currently available and was not ascertainable through the exercise of reasonable diligence by the convicted person before or during trial or before the date of entry of a plea.

b. The court determines that, had the evidence been presented at trial, there is a reasonable likelihood that there would have been a different outcome or that the convicted person would not have been convicted.

(3) In determining whether relevant forensic scientific evidence was not ascertainable through the exercise of reasonable diligence, the court shall consider whether the relevant scientific evidence has changed since:

a. For a determination made with respect to an original application, the applicable trial date or dates, or the date of entry of plea of guilty or a plea of nolo contendere.

b. For a determination made with respect to a subsequent application, the date on which the original application or a previously considered application was filed.

(4) This section does not create any liability for an expert who repudiates an opinion the expert provided at a hearing or trial or whose opinion has been undermined by later scientific research or technological advancements.

(c) Eligibility. Notwithstanding any other provision of law, a convicted person who contends that the convicted person did not commit the crime that resulted in conviction may file, at any time, a petition relating to forensic evidence that was not ascertainable through the exercise of reasonable diligence or that undermines forensic scientific evidence presented at trial. Eligible applicants include:

(1) Persons currently incarcerated in a Department of Correction facility or the Delaware Psychiatric Center, on parole or probation, or subject to registration on the sex offender registry.

(2) Persons convicted on a plea of not guilty, guilty, or nolo contendere.

(3) Persons deemed to have provided a confession or admission related to the crime, either before or after conviction.

(4) Persons who have completed their sentences.

(d) Filing and service. The petition must be filed in the Superior Court. The court shall fix a time to hear the claim that is no later than 90 days after the date the petition was filed and shall mail notice of the hearing to the petitioner and the Department of Justice. The Department of Justice may file a response to the petition no later than 30 days after the date the petition was filed.

(e) Review by the court.

52 (1) If, upon reviewing the petition, the court determines that the petitioner failed to make a prima facie
53 showing of the requirements for relief as defined in subsection (b) of this section, the court shall dismiss the
54 petition in a written opinion.

55 (2) If, upon reviewing the petition, the court determines that the petitioner made a prima facie showing of
56 the requirements for relief as defined in subsection (b) of this section, the court shall take the following actions:

57 a. Grant the petitioner additional discovery on matters related to forensic evidence used to obtain
58 the conviction or sentence at issue, including documents pertaining to the original criminal investigation
59 or the identities of other suspects. The court shall interpret the petitioner's right to discovery broadly.

60 b. Hold a hearing on the petitioner's claims to determine whether the petitioner has met the
61 requirements of paragraph (b)(2) of this section. If the court determines that the petitioner has met the
62 requirements of paragraph (b)(2) of this section, it shall vacate the petitioner's conviction and grant the
63 petitioner's motion for a new trial.

64 (3) A petitioner may appeal a dismissal within 30 days after dismissal is entered.

SYNOPSIS

This Act provides a remedy for convicted persons relating to changes in forensic scientific or technical information. Specifically, a convicted person may apply to the Superior Court for relief if certain forensic scientific information was not available to be offered by the convicted person prior to the conviction or if it undermines forensic scientific evidence that was presented at trial. The court may grant relief if (1) the convicted person files an application asserting that the relevant forensic evidence is currently available and was not ascertainable through the exercise of reasonable diligence by the convicted person before or during trial or before the date of entry of a plea, and (2) the court determines that, had the evidence been presented at a trial, there is a reasonable likelihood that the result at trial would have been different or that the convicted person would not have been convicted.

Once a petition for relief is filed, the Superior Court shall set a hearing on the petition, not later than 90 days after the petition was filed, and notify the petitioner and the Department of Justice. The Department of Justice may file a response to the petition within 30 days after its filing. After the hearing, if the court determines that the petitioner has failed to make a prima facie showing that the petitioner is entitled to relief, the court will dismiss the petition in a written opinion. However, if the court determines that the petitioner has made a prima facie showing that the petitioner is entitled to relief, the court shall grant the petitioner discovery on matters relating to the forensic evidence used to obtain the conviction or sentence at issue and hold another hearing to determine whether there is a reasonable likelihood that, had the new evidence been presented at a trial, the convicted person would not have been convicted. If so, the court shall vacate the petitioner's conviction and grant the petitioner's motion for a new trial.

For purposes of the Act, "convicted person" means a person who has received a verdict of guilty by the trier of fact, entered a plea of guilty or a plea of nolo contendere that was accepted by the court, or received a verdict of not guilty by reason of insanity.

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